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JASDELOA SMITH REGISTER OF DEEDS MECKLENBURG COUNTY, NC	

Drawn by and Mail to:
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 Davidson, NC 28036

STATE OF NORTH CAROLINA

**FIRST AMENDMENT TO DECLARATION OF
 COVENANTS, CONDITIONS AND
 RESTRICTIONS FOR TOWNHOMES AT
 LAKE DAVIDSON, A SUB-COMMUNITY OF
 DAVIDSON BAY BY THE WATER**

COUNTY OF MECKLENBURG

THIS FIRST AMENDMENT TO DECLARATION OF COVENANTS,
 CONDITIONS AND RESTRICTIONS FOR TOWNHOMES AT LAKE DAVIDSON
 (the "Amendment") is made this 21st day of March, 2021, by _____
**TOWNHOMES AT LAKE DAVIDSON, A SUB-COMMUNITY OF DAVIDSON
 BAY BY THE WATER, OWNERS ASSOCIATION, INC.**, a North Carolina Non-
 Profit Corporation (the "Association").

WITNESSETH

WHEREAS, the Declaration of Covenants, Conditions and Restrictions for
 Townhomes at Lake Davidson, a Sub-Community of Davidson Bay by the Water, was
 recorded in the Mecklenburg County Public Registry in Book 29790 at Page 286-323,
 (the "Declaration"); and

WHEREAS, the Declaration established the Association for the purposes of
 maintaining, administering, operating and replacing the Townhomes and Facilities
 described therein; and

WHEREAS, all defined terms used in this Amendment, as indicated by the initial capitalization thereof, shall, unless otherwise specifically defined herein, be deemed to have the same meaning as assigned to such terms in the Declaration; and

WHEREAS, Section 13.1 of Article 13 of the Declaration provides that the Declaration may be amended by an affirmative vote of sixty-seven percent (67%) of the votes (with the votes being calculated as provided in Sections 8.2 and 8.3 of the Declaration) of Owners; and

WHEREAS, on March 20, 2021, not less than sixty-seven percent (67%) of the votes (with the votes being calculated as provided in Sections 8.2 and 8.3 of the Declaration) of Owners, were cast in favor of this Amendment, as certified by the certificates of the officers attached hereto.

NOW, THEREFORE, the Declaration is hereby amended as follows:

1. The following definition shall be included in Article 3:

““Resident Owner” shall mean and refer to an Owner of a Dwelling Unit whose primary residence is the Dwelling Unit owned.”

2. The following new Sections shall be added to Article VIII:

“Section 8.12 Board of Directors (the “Board”)

(a) The Board shall consist of five (5) members. All Board members are to be Resident Owners. Three Board members will be Class I members elected to two (2) year terms in years ending in even numbers and two (2) will be Class II members elected to two (2) year terms in years ending in odd numbers.

(b) After the annual election of new Board members at each annual meeting, the Board will then convene to elect its new officers. Those officer positions will be President, Secretary and Treasurer. These officer positions shall be for one-year terms and elections of officers shall take place at the first convened Board meeting after each annual meeting of Resident Owners. Board members may serve subsequent one-year terms as officers, if elected.

(c) Board members may be removed, with or without cause, by the vote of the Owners of a majority of Dwelling Units at a meeting of Members called for that purpose, or, pursuant to Section 8.15, by the written consent of Owners of at least 90% of Dwelling Units without a meeting being called.

(d) The Board may fill any vacancy on the Board by appointing a Resident Owner to serve the remainder of the term associated with such vacancy.

Section 8.13 Annual Meeting of Members

(a) Each year, the Association shall hold an annual meeting of Members, at which one class of Board members shall be elected. The annual meeting shall be held on a date, time and place determined by the Board, provided that such meeting shall be held no later than thirteen (13) months after the date of the previous year's annual meeting.

(b) Written notice (which shall include e-mail) of the date, time and place of the annual meeting, as well as all items to be submitted to a vote of Members (including any items submitted pursuant to paragraph (d) of this section), shall be given by the Secretary to all Members at least ten (10) but not more than thirty (30) days before the date of the annual meeting.

(c) The Board shall determine the agenda for the annual meeting including nominees for Board member.

(d) Any two Members may propose additional Board candidates or proposals for consideration at the annual meeting provided that:

1. Any such additional nomination and/or proposals are received by the Secretary in writing prior to the written notice required by paragraph (b) of this Section; and

2. The Board determines that such proposals are proper matters to be considered by Members.

Section 8.14 Special Meetings of Members

(a) Special meetings of Members may be called by the Board for any reason.

(b) A special meeting shall also be called by the Board upon receipt by the Secretary of requests for such a meeting from Members owning a majority of Dwelling Units. The requests must be dated and clearly state the proposal(s) to be considered at the special meeting. After determining that the proposal(s) to be considered are proper matters for a vote of Members, the Board shall call a special meeting to be held not less than twenty (20) nor more than forty (40) days from the date the requisite requests are received by the Secretary.

(c) Written notice (which shall include e-mail) of the date, time and place of the special meeting, as well as all items to be submitted to a vote of Members shall be given by the Secretary to all Members at least ten (10) but not more than thirty (30) days before the date of the special meeting. No other matters (except procedural matters, including a proposal to adjourn the meeting) shall be put to a vote of Members at the special meeting.

Section 8.15 Action Without a Meeting of Members

(a) Any action that may be taken at any annual or special meeting of Members may be taken without a meeting and without prior notice if dated consents in writing setting forth the action so taken are signed by Members owning at least ninety percent (90%) of Dwelling Units. All such consents shall be filed with the Secretary and kept with the records of the Association.

(b) Any Member giving a written consent may revoke it prior to it becoming effective, by giving written notice of such revocation to the Secretary. Consents are considered to be effective if, as and when the requisite number of property executed consents to approve the proposed action has been received by the Secretary."

3. Section 12.1 of the Declaration is hereby amended to read as follows:

"12.1. Maintenance of Association.

The Association shall be responsible for the operation, maintenance and repair of the Common Area. In addition, the Association shall be responsible for the following items of exterior maintenance: lawn care in the front yard area of each Lot and maintenance and repair of all sidewalks. Notwithstanding the foregoing, the Association shall not be responsible for any maintenance or repairs caused by the negligence or intentional misconduct of any Owner, his agents, invitees or family members, which shall be the responsibility of that Owner."

4. Section 12.2 of the Declaration is hereby amended to read as follows:

"12.2. Maintenance by Owners.

Except for the maintenance required of the Association under Section 12.1, each Owner of a Lot shall keep the Lot owned by him, and all improvements thereon, in a clean and sanitary condition and in good order and repair, including driveways, periodic repainting of exterior building surfaces on each Dwelling Unit, and repair and replacement (if necessary) of all building elements including the following structural elements of each Dwelling Unit: exterior walls and building surfaces, roofs, front stoops, gutters, windows, doors and downspouts. All fixtures and equipment installed within a Lot, shall be maintained and kept in repair by the Owner thereof. If an Owner of any Lot fails to maintain that Lot and the improvements thereon in accordance with this Article

XII in a manner reasonably satisfactory to the Board, in its sole discretion, the Board shall give written notice to such Owner and, if the necessary maintenance is not completed within twenty (20) days, the Association shall have the right, through its agents, contractors, and employees, to enter upon the Lot of the defaulting Owner and to repair, maintain and restore the Lot and the exterior of the building and any other improvements erected thereon in a reasonable and good and workmanlike manner. The cost of such repair, maintenance or restoration shall immediately be deemed a special assessment levied by the Association against such Owner and such Owner's Lot, shall become the personal obligation of such Owner and shall become a lien against such Lot enforceable in accordance with the provisions herein. In the event of an emergency (as so deemed by the Board in its reasonable discretion), the Association shall have the right, with or without prior notice to the Owner, to enter any Lot and Dwelling Unit to make emergency repairs necessary for the proper maintenance and operation of the Property."

5. This Amendment is effective on the date hereof. In all other respects the Declaration shall remain unchanged and the Declaration, as amended, is hereby ratified and shall remain in full force and effect.

IN WITNESS WHEREOF, the undersigned has caused these presents to be duly executed by authority duly given, the day and year first above written.

ASSOCIATION:

TOWNHOMES AT LAKE DAVIDSON, A
SUB-COMMUNITY OF DAVIDSON BAY
BY THE WATER, OWNERS
ASSOCIATION, INC., a North Carolina
Non-Profit Corporation

By: _____

Name: _____

Title: _____

[Acknowledgement on following page]

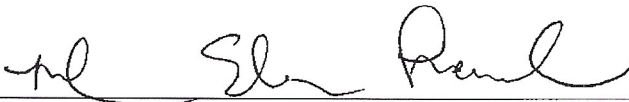
STATE OF NORTH CAROLINA

COUNTY OF Iredell

I, Rachel Eleanor Leonard, a Notary Public of the County and State aforesaid, certify that George Gerard Allen personally came before me this day and acknowledged that he is President of Townhomes at Lake Davidson, a Sub-Community of Davidson Bay by the Water, Owners Association, Inc., a North Carolina non-profit corporation, and that he, as President, being authorized to do so, executed the foregoing instrument on behalf of Townhomes at Lake Davidson, a Sub-Community of Davidson Bay by the Water, Owners Association, Inc.

I certify that the following person personally appeared before me this day, acknowledging to me that he or she voluntarily signed the foregoing document for the purpose stated therein and in the capacity indicated: President.

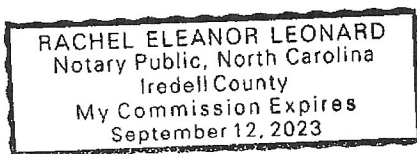
March 21, 2021


(Official Signature of Notary)

Notary's printed name: Rachel Eleanor Leonard
Notary Public

STAMP/SEAL

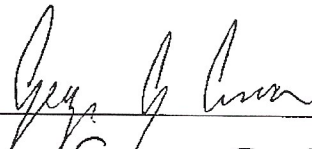
My commission expires: 9-12-2023



Board Officer's Certificate of Approval of Amendment

**Board Officer's Certificate of Approval of Amendment
(Amendment to the Declaration)**

1. I certify that I am the President (Board Officer) of the Association, and that I have been appointed and am presently serving in that capacity in accordance with the Declaration.
2. I further certify that at a meeting called and convened in accordance with Section 13.1 of the Declaration on the 20th day of March, 2021, the attached First Amendment was duly adopted and approved by the requisite percentages (with the votes being calculated as provided in Sections 8.2 and 8.3 of the Declaration).



Name: George G. Arena

Title: President

(Amendment to the Declaration)

1. I certify that I am the Secretary (Board Officer) of the Association, and that I have been appointed and am presently serving in that capacity in accordance with the Declaration.
2. I further certify that at a meeting called and convened in accordance with Section 13.1 of the Declaration on the 20th day of March, 2021, the attached First Amendment was duly adopted and approved by the requisite percentages (with the votes being calculated as provided in Sections 8.2 and 8.3 of the Declaration).

Pamela Rogers

Name: PAMELA ROGERS

Title: Secretary

**Board Officer's Certificate of Approval of Amendment
(Amendment to the Declaration)**